

A By-law for licensing and regulating
the owners and drivers of
vehicles for hire in the City of Vancouver

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THE COUNCIL OF THE CITY OF VANCOUVER, in open meeting assembled, enacts as follows:

1. This By-law may be cited as the "Vehicles for Hire By-law".

2. In this By-law, unless the context otherwise requires:

"Applicant" means the person who makes and signs an application for any license or transfer of any license.

"Approved Towaway Sign" means a sign, in a form satisfactory to the Inspector, which adequately indicates the circumstances under which a vehicle may be towed away and the place where it may be reclaimed.

"Chief Constable" means the Chief Constable for the time being of the City and includes his lawful assistants.

"Commercial Parking Lot" means an area of land or any building or part thereof where the lawful parking of motor vehicles is provided for a fee, and includes, where no fee is charged, areas provided specifically for customers of a business, or tenants in buildings other than buildings used exclusively for residential purposes.

"Driver" includes every person who drives or is in charge of a vehicle for hire.

"Hire" means the fare, toll, fee or rate charged or collected from any person for the transportation of a person or persons, or chattels of persons.

"Inspector" means the Chief Licence Inspector of the City duly appointed by the Council, and includes his lawful assistants.

"License" means the license required or issued under the provision of this By-law.

"Motor Vehicle" includes automobiles, motorcycles and all other vehicles propelled otherwise than by muscular power, excepting trailers.

"Municipal Permit" means the permit required to be held by a chauffeur pursuant to the "Motor Vehicle Act".

"Owner" includes the proprietor or other person having the conduct or operation of any vehicle for hire.

"Parking Lot" means any area of land, or land and building, which is used for the purpose of providing parking facilities for automobiles, but does not include an area where such parking is an ancillary use to a single-family dwelling on the same area of land.

"Passenger Transportation Pool Vehicle" means any motor vehicle that is operated at any time or from time to time on a highway under the following conditions:

- (a) for the transportation of persons from the residence of the vehicle owner or operator to a place of employment or to a common destination adjacent thereto or in the case of an employer-operated vehicle, for the transportation of that employer's employees to and from a place of employment; and
- (b) the carriage of such persons is conducted in conjunction with a transportation pooling arrangement for passengers which is sponsored and coordinated by an organization or agency working in conjunction with the federal government of Canada, the government of British Columbia, the governing body of any city or municipality in British Columbia or any combination of these governmental bodies; and
- (c) the compensation charged to passengers for such transportation does not exceed, in the aggregate, an amount equivalent to that required to pay operating costs and capital costs of the vehicle used for such transportation during the period of usage when the vehicle is employed in providing such transportation.

"Seating capacity" means the rated passenger load assigned to a motor vehicle by its manufacturer, but when used in combination with "passengers" does not include the driver.

"Taxicab", where used in sections 20 and 21 of this By-law includes, except where the context otherwise indicates, a "dual taxicab".

"Taximeter" means any mechanical or electronic instrument or device by which the charge for transportation in any taxicab is mechanically or electronically calculated either for distance travelled or for waiting time, or both, and upon which the charge is indicated by means of figures.

"Used", where it appears in any subsection of this section, means used or intended, designed or kept for use.

"Vehicle for Hire" means a vehicle used for the carrying, transportation or conveyance of persons or property for hire and, without limiting the generality of the foregoing, shall for the purpose of this By-law include the following classifications:

"Airport Shuttle Bus", which means a motor vehicle used exclusively to transport persons from an Airport Transporter to any point in the City or from any point in the City to an Airport Transporter at no cost to the passenger.

"Airport Transporter", which means a motor vehicle of a type and design of a bus or van with a seating capacity of 7 or more passengers and that is used exclusively to transport passengers to an airport.

"Antique Charter Limousine", which means a 4 door sedan motor vehicle which is at least 50 years of age and is used for carrying persons by charter.

"Charter Bus", which means a motor vehicle having a seating capacity of 10 or more passengers and operated as a sightseeing venture over a fixed or predetermined route of travel and charging a certain sum per person for each trip or by charter to transport persons on a prearranged basis to a specified location.

"Charter Limousine", which means a 4 door sedan motor vehicle having a seating capacity of 6 or more passengers and used for carrying persons by charter.

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"Driver Instruction Vehicle", which means a motor vehicle equipped and used for the purpose of teaching others to drive motor vehicles.

"Dual Taxicab", which means a 4 door motor vehicle having a seating capacity of not less than 4 and not more than 7 passengers including one passenger confined to a wheelchair.

"Funeral Cab", which means a motor vehicle used exclusively for the transportation of persons incidental to a funeral.

"Handicapped Cab", which means a motor vehicle of a type and design of a bus or a van that is used primarily for transporting handicapped persons including passengers who are confined to wheelchairs.

"Horse-Drawn Carriage", which means a 4-wheeled vehicle drawn by no more than 2 horses and operated over a fixed or defined route of travel.

"Luxury Limousine", which means a 4 door sedan motor vehicle registered as a Rolls Royce or Bentley.

"Motor Stage", which means a motor vehicle having a seating capacity of 12 or more passengers used for the carrying of persons from the City and operated at any time or from time to time over a route or between fixed termini or on a regular time or toll schedule.

"Pedicab", which means a 3-wheeled vehicle propelled solely by the foot power of the operator and capable of carrying no more than 2 passengers in addition to the operator.

"Public Bus" which means a motor vehicle having a seating capacity of more than 7 passengers, which is operated for the purpose of providing transportation to persons who have not prearranged to be transported on a specific trip. It does not include a vehicle coming within any of the classes more specifically defined in this section, but does include a vehicle operated by the Metro Transit Operating Company or as part of a service established under the British Columbia Transit Act.

"Rickshaw", which means a 2-wheeled vehicle pulled by the operator and capable of carrying no more than 2 passengers.

"School Cab", which means a motor vehicle used for the conveyance of children to or from school and operated by or under contract with the owner or person in charge of the school.

"Taxicab", which means a 4 door sedan motor vehicle having a seating capacity of not less than 4 and not more than 7 passengers.

"Tow Truck", which means a motor vehicle designed or adapted for use as a means of towing other motor vehicles from place to place.

"U-Drive", which means a motor vehicle which may be hired or rented by the hour, day, week or month without a driver, but does not include a vehicle leased on a yearly basis or for a longer period.

3. The following are exempt from the regulations of this By-law:

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- (a) the operation of any vehicle for hire by the Metro Transit Operating Company or as part of a service established under the British Columbia Transit Act;
- (b) except for section 6(2), the Vancouver Civic Development Corporation;
- (c) the operation of any passenger transportation pool vehicle.

4. No person shall own or operate any vehicle for hire except as classified, described or named in Schedule "A" of this By-law.

5. (1) No person shall drive, operate or be in charge of a taxicab or a charter, antique or luxury limousine without first having obtained a municipal permit for that purpose from the Chief Constable.

(2) Every person applying for a municipal permit shall make application to the Chief Constable who may grant or refuse to grant a permit. In the event of a refusal section 32 of the Motor Vehicle Act shall apply.

6. (1) No person shall carry on, engage in, own or operate any business, trade, occupation, undertaking or thing classified, described or named in Schedule "A" of this By-law without first having obtained from the City a license therefor.

(2) Every person applying for a license pursuant to this By-law shall make application to the Inspector on the form provided for that purpose, and at the time of making the application shall pay to the City the license fee specified in Schedule "A" of this By-law.

(3) On receipt of an application and before issuing any license thereon, the Inspector shall ascertain whether the applicant has at any time within the preceding 5 years been convicted of any offence under any Statute of Canada, the Province of British Columbia or elsewhere, or under any By-law of the City of Vancouver, and shall refuse to issue such license if he believes that the nature of the offence relates to the business, trade, profession or other occupation for which the application has been made. The Inspector shall also refuse to issue such license unless he is satisfied that:

- (a) the applicant is 19 years of age or older; can speak, read and write the English language; possesses an intimate knowledge of the City and its traffic regulations and of this By-law; and is willing and able to maintain a continuous and satisfactory service to the public during the currency of the license;
- (b) except in the case of a driver instruction vehicle, the applicant is the registered owner of the vehicle with respect to the operation of which a license has been applied for; provided, however, any person owning a vehicle licensed as a u-drive, motor stage, funeral cab, school cab, charter bus, or airport transportor may lease, for a period not less than 30 days, other motor vehicles for use in connection with his said business;
- (c) the vehicle with respect to the operation of which a license has been applied for is suitable for the use intended, is equipped as required by this By-law, and complies in all respects with applicable provisions of the Motor Vehicle Act and the Highway Act; and

- (d) In the case of a vehicle for hire which is not defined as a "motor vehicle" pursuant to the Motor Vehicle Act, the applicant is the holder of a valid policy of liability insurance pertaining to the vehicle with a minimum coverage of \$2,000,000 (two million dollars).

(4) If the Inspector refuses to issue such license the applicant may appeal to Council who may grant or refuse the application.

(5) Subject to the provisions of this section the Inspector shall issue a license to an applicant.

(6) Notwithstanding subsection (1) of this section, a person not licensed pursuant to this By-law but holding a valid taxicab license from another municipality may pick up passengers within the City provided that the passengers have made prior arrangements for the pick up and the destination is at all times within the municipality where the owner or operator of the taxicab is originally licensed under the Motor Carrier Act.

7. (1) All licenses issued under this By-law, unless the same becomes sooner forfeited, suspended, or revoked, shall be for the calendar year current at the time of issuance of such license, and shall expire on the 31st day of December next succeeding the date of issue.

(2) Where an applicant commences the operation of any vehicle for hire within the City after July 31st in any calendar year, the license fee shall be the fee to transfer the license or one half of the applicable fee shown in Schedule "A" of this By-law, whichever is greater.

8. (1) A license issued under this By-law shall be deemed to be suspended if the vehicle in respect of which the license has been issued fails to pass a safety inspection under the provisions of the Motor Vehicle Act and the license thereof shall remain suspended until the vehicle has been reinspected and approved pursuant to the provisions of that Act.

(2) A license issued under this By-law shall be deemed to be suspended if the license holder does not hold a valid policy of insurance as required by clause (d) of section 6(3) of this By-law.

(3) Any person who, for monetary consideration, employs his vehicle for hire for purposes other than for which he is licensed shall be subject to the suspension or revocation of the license at the discretion of the Council.

(4) It is an express condition of the granting of any license that the licensee shall observe all by-laws of the City, and noncompliance with any of the provisions of such by-laws shall be deemed to be a breach of the conditions under which the license was granted, and shall render such license subject to suspension or revocation at the discretion of the Council.

9. (1) Any person whose license has been suspended by the Inspector may appeal such suspension in accordance with provisions set out hereunder.

(2) A person who proposes to appeal a suspension of a license shall within 10 days from the date of suspension give to the City Clerk a notice in writing of his intention to appeal the said suspension.

(3) The notice of intention to appeal shall state in a concise fashion the grounds upon which the appeal is based.

(4) The City Clerk shall thereupon refer the matter to Council in order to appoint a time and place for the hearing of the Appeal.

10. (1) Any person desiring to obtain a transfer of any license, or interest in any license, issued pursuant to this By-law and held by any other person, shall make an application the same as that required to obtain a license under this By-law; and the powers, conditions, requirements and procedures relating to the granting and refusal of the licenses and appeals thereon shall apply.

(2) No person who purchases all or part of the interest of any person licensed pursuant to this By-law shall carry on or continue the business, trade, profession or other occupation so purchased without first having obtained either a transfer of the license or a new license.

(3) No license shall be transferred from one person to another more than once during any calendar year.

(4) Where any license is transferred, the applicant shall pay a fee of \$30.00.

11. (1) The Inspector shall furnish to each person taking out a license with respect to the operation of a vehicle for hire, except a U-Drive, a numbered plate for each such vehicle kept and used by that person. Such plate shall remain the property of the City and on the expiration, revocation or suspension of the license corresponding or represented thereby, such person shall forthwith return such plate to the Inspector.

(2) Every person to whom a plate has been furnished pursuant to this section shall keep such plate on each such vehicle for hire in a place designated by the Inspector.

(3) It shall be unlawful for any person so licensed to use or exhibit on any vehicle for hire any City plate other than the plates set out in the license.

(4) Where a vehicle for hire plate furnished pursuant to this section has become lost, mutilated or destroyed the Inspector may, upon receipt of written proof satisfactory to him setting out such loss, mutilation or destruction, issue a replacement plate upon payment of a fee of \$10.00.

11A. No person shall be licensed to operate an antique charter limousine:

- (a) unless such vehicle is capable of maintaining a minimum speed of 40 km/h; and
- (b) except by charter or over a predetermined route between Stanley Park and the EXPO 86 site.

12. (1) No person shall be licensed with respect to a charter limousine unless the year of the vehicle's manufacture is within 5 years of the date of application for the license or any renewal thereof.

(2) Notwithstanding subsection (1), the Inspector may license a person with respect to a charter limousine manufactured more than 5 years but less than 10 years from the application or renewal date if he is satisfied, on the basis of annual inspections, that the exterior appearance of the vehicle and the condition of its interior finishings are of a high standard.

13. (1) No license shall be issued in respect of a driver instruction vehicle unless the vehicle:

- (a) is installed with dual-control equipment in order that the instructor in charge of the vehicle may at any time assume full and exclusive control over it;
- (b) conforms to the requirements imposed by this By-law with respect to the vehicle and to the operational equipment required for the purpose of giving driver instruction.

(2) No person shall use or operate any driver instruction vehicle unless the vehicle:

- (a) while in use is plainly marked with a sign on the rear bearing the warning: "Student Driver";
- (b) while in use is occupied only by the instructor and the pupil or, in the case of a high school or other group or organization receiving instruction, 3 additional students as passengers;
- (c) is used only for the purpose of driver instruction or driver testing.

(3) No person shall carry on the business of teaching or instructing in the driving of a motor vehicle unless he uses for that purpose a driver instruction vehicle conforming to the requirements set out in subsections (1) and (2) of this section.

(4) No license to operate a driver instruction vehicle shall be issued unless the applicant:

- (a) has an office, waiting room accommodation for pupils, and access to washrooms for both sexes; and
- (b) has filed with the Inspector a syllabus of his proposed course of driver training and instruction.

14. (1) Every dual taxicab:

- (a) shall be a 4 door sedan vehicle described as a "G.S.M. taxicab" or of a similar type satisfactory to the Inspector;
- (b) shall be equipped with a sufficiently high door and have sufficient ceiling height to permit easy access for elderly and handicapped persons;
- (c) shall have posted on each side of the vehicle the International Symbol of Accessibility for Handicapped Persons.

(2) Every owner of a dual taxicab:

- (a) shall place an advertisement in the Yellow Pages of the Vancouver Telephone Directory under the trade name by which he operates indicating the capability of his vehicles to serve handicapped and wheelchair passengers and that requests for service from these classes of persons shall receive priority over all other service requests;
- (b) shall ensure that each driver of a dual taxicab, in addition to complying with section 20(14) of this By-law, records on his daily record every trip that involved the transporting of a handicapped person,

stating in each case whether such person was confined to a wheelchair;

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- (c) shall ensure that each driver of a dual taxicab is physically capable of assisting in the loading and unloading of persons confined to wheelchairs;
- (d) shall ensure that at all times he has liability insurance in the amount of \$1,000,000 that insures all drivers of his dual taxicabs against all loss, damage, and claims arising out of or in connection with the loading or transporting of handicapped persons.

15. No motor vehicle licensed under this By-law as a funeral cab shall be used for the conveyance of passengers for hire except as incidental to a funeral.

16. (1) No license shall be issued in respect of a handicapped cab unless the vehicle is equipped with a hydraulic lift or ramp, or other equipment satisfactory to the Inspector, for loading and unloading persons confined to wheelchairs.

(2) No person shall transport persons in a handicapped cab unless at least one of the persons being transported is physically handicapped.

(3) No owner or driver of a handicapped cab shall solicit any person on any street.

17. (1) No person shall operate a horse-drawn carriage

- (a) from 3:01 p.m. to 5:59 p.m. on any day or from 11:01 p.m. on any day to 9:29 a.m. of the following day;
- (b) on any City street except as approved by the City Engineer; and
- (c) without the capacity for the immediate removal of manure as soon as it is deposited on a street.

(2) No more than 8 horse-drawn carriages shall be licensed as such at any time.

18. (1) No person shall operate a pedicab

- (a) from 2:01 a.m. to 9:29 a.m. on any day;
- (b) during the months of December, January and February; and
- (c) on any City street except as approved by the City Engineer.

(2) No more than 30 pedicabs shall be licensed as such at any time, except that an additional 10 pedicabs may be licensed for the year 1986.

19. (1) No person shall use or operate any vehicle as a public bus.

(2) Notwithstanding anything contained in the License By-law, the Inspector shall not issue a license which would permit the operation of a public bus system.

- (a) from 3:01 p.m. to 5:59 p.m. on any day or from dusk on any day to 9:29 a.m. of the following day, except that where the rickshaw is equipped with lighting to the satisfaction of the City Engineer this prohibition shall not apply to its operation from dusk on any day to 2:00 a.m. of the following day;
- (b) after November 30, 1986; and
- (c) on any street except as approved by the City Engineer.

(2) No more than 10 rickshaws shall be licensed as such at any time.

20. (1) The total number of taxicabs, excluding dual taxicabs, owned or operated by persons licensed pursuant to this By-law shall not exceed 398 except that commencing January 1, 1984, 10 additional taxicab licenses may be issued each year until the ratio of 1.2 taxicabs, excluding dual taxicabs, for each 1,000 of population of the City of Vancouver (as estimated by the City Clerk) is reached. The total number of dual taxicabs owned or operated by persons licensed pursuant to this By-law shall not, in any one year, exceed 30.

(2) Every person to whom a taxicab license has been granted shall keep an established place of business within the City of Vancouver and shall notify the Chief Constable and Inspector in writing of the address of the premises where such person keeps his books and records of operation of his business, and such license shall be kept conspicuously posted up in such premises. Such person shall immediately notify the Chief Constable and the Inspector in writing of any change in such address, and no license shall be issued for the operation of a taxicab unless the applicant has a business telephone and is listed in the telephone directory under the trade name by which he operates. The place of business herein referred to may be the business premises of anyone open during regular business hours.

(3) Any person having obtained a license with respect to the operation of a taxicab may obtain an additional license to display advertising material on such vehicle, and any such additional license shall be subject to the provisions of this By-law and the Street and Traffic By-law and the payment of an additional license fee as provided for in Schedule "A" of this By-law.

(4) Every owner of a taxicab shall have painted or permanently affixed on either the rear or front door on each side of such taxicab a business name, which shall include the word "Taxi" or "Cab" in lettering not less than 5 centimetres high and which shall be kept clear, clean and distinguishable at all times. In addition, an illuminated sign, complying in all respects with the Regulations made pursuant to the Motor Vehicle Act, bearing the word "Taxi" or "Cab", shall be placed in the front of the taxicab, either on the outside above the windshield, or inside behind the windshield in a position satisfactory to the Inspector. Such sign shall be illuminated when the taxicab is available for hire.

(5) No trade name shall be used on any taxicab unless such trade name has first been approved by and recorded with the Inspector; and no licensed owner or driver shall use or publish, or permit to be used or published, in connection with his business or premises, any advertising matter or sign indicating, implying or suggesting fares or charges lower than the tariff of fares and charges which owners or drivers of taxicabs are entitled to receive or charge under the provisions of this By-law.

(6) No motor vehicle shall be operated as a taxicab except by the registered owner thereof or by a driver employed by and directly responsible to such owner.

(7) Every owner granted a license to operate a taxicab shall, on the engagement of any driver, ascertain the number and date of his taxi driver's license and municipal permit, and forthwith report the same to the Chief Constable and shall, during the term of the driver's employment, keep a record of such license and permit.

(8) No taxicab shall be equipped with blinds or other devices so as to prevent unrestricted vision through all windows.

(9) Every taxicab shall be equipped with an interior light, sufficient to illuminate the entire passenger compartment and at all times maintained in proper working order.

(10) Every holder of a license for operating a taxicab shall be available for hire for a period of not less than 10 hours in each 24 hours, and for not less than 6 days in each calendar week.

(11) Every person in charge of any taxicab shall:

- (a) be neatly and properly dressed, neat and clean in his person, and be civil and well-behaved;
- (b) remain within 7 metres of his taxicab when the same is at a stand;
- (c) keep the doors of such taxicabs closed when the same is at a stand waiting for passengers;
- (d) not stand in such a manner so as to obstruct the free use of the sidewalk or make any loud noise or disturbance nor use obscene, impudent or abusive language, nor molest, annoy or insult the owners, occupiers, inmates or inhabitants of any building, house or residence, or any passenger, pedestrian or other person whatsoever;
- (e) refrain from smoking at the request of any passenger.

(12) No driver of any taxicab shall seek employment by driving his taxicab to and fro upon any street, or by interfering with the proper and orderly access to or egress from, or by cruising or hovering in front of any theatre, hall, hotel, railway or ferry station, or other place of public gathering; provided, however, that the driver of a taxicab may accept passengers at any place of public gathering so long as his taxicab is lawfully parked in the vicinity of the place or building where such public gathering is taking place.

(13) Every driver of a taxicab shall proceed by the most direct travelled route to the point of destination, unless otherwise directed by the passenger.

(14) Every driver of a taxicab shall keep a daily record of all trips made by him. The record must contain the following information:

- (a) the date, time, origin and destination of each trip;
- (b) the driver's name and address;
- (c) the Provincial license number of the taxicab;

(d) the speedometer reading at the start and finish of the driver's shift.

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(15) The driver shall deposit the record with the owner of the taxicab at the end of his shift or as soon as possible thereafter.

(16) Before accepting the daily trip record from the driver, the owner of a taxicab shall ensure that each trip is legibly and properly noted in the record.

(17) The records referred to in subsection (14) shall be kept by the owner of the taxicab at his place of business for a period of 6 months, and during that time shall be produced for inspection at any time on demand by the Chief Constable or the Inspector.

(18) Every owner and driver of a taxicab, but not including a dual taxicab, shall accommodate the persons who desire his service in the order of their application, and if a taxicab is not available to give the desired service within a reasonable time, then the applicant shall be informed.

(19) No owner or driver of a taxicab, but not including a dual taxicab, shall refuse or neglect to convey any orderly person or persons upon request in the City unless previously engaged or unable or prohibited by the provisions of this By-law.

(20) No owner or driver of a taxicab shall convey any person or persons other than the person or persons first engaging the taxicab and the carrying of passengers for separate fares is prohibited.

(21) No person shall be licensed in respect of a taxicab or driver instruction cab if the year of its manufacture is more than 2 years prior to the year of application, except that the Inspector may approve a license in respect of an older vehicle, for a limited period of time, where the exterior appearance of the vehicle and the condition of its interior finishings are of a standard commensurate with its original construction.

(22) Every taxicab shall be equipped with a two-way radio which shall be maintained in good working order and capable of receiving and acknowledging calls for customer service.

21. (1) No owner or driver of a taxicab shall charge, demand, collect or receive any fare or charge except as set out in the following tariff of fares, nor shall any owner or driver refund or remit in any way any portion of the fares so specified. No owner shall publish or use or permit to be published or used any rates or fares other than those authorized hereunder, whether such rates or fares are determined by taximeter or by time. No owner, either directly or indirectly, shall carry or permit to be carried free any passenger, except his officers, agents or employees or for a charitable purpose.

TARIFF: TAXICABS

The following fares shall be applicable to taxicabs as hereinbefore defined:

POINT TO POINT ON METER:

For the first one-ninth (1/9) kilometer	
or fraction thereof	\$ 1.40
For each additional one-ninth (1/9) kilometer	
or fraction thereof	.10
For each 26 seconds of stopping or waiting	
time after the first 2 minutes	.10

TIME OR DISTANCE:

For the first hour or portion thereof	\$14.00
or per kilometer, whichever is greater	.90
For each succeeding quarter hour or fraction thereof ...	3.50
or per kilometer, whichever is greater	.90

ADDITIONAL PASSENGERS

No charge shall be made for additional passengers.

DISMISSAL FEE \$.50

FERRY AND BAGGAGE CHARGES

The following charges shall be paid in addition to the regular taxicab tariff:

- (a) All ferry and toll charges applicable to the vehicle and its occupants,
- (b) For each trunk carried \$ 2.00
except that no charge shall be made for travelling bags, valises, boxes or parcels which the passengers carry by hand.
- (2) Any person operating a taxicab may operate on a time or mileage basis at the request of a passenger at and for rates and charges specifically provided in this By-law in respect to time rates or fares for such vehicle.
- (3) The owner and driver of every taxicab shall display therein a tariff card of the rates and charges for taxicabs as authorized by this By-law. Such tariff card shall be kept and displayed so as to face the passenger and in a place designated by the Inspector. No person shall remove such tariff card or mutilate, deface or otherwise dispose of same.
- (4) No person shall drive or operate or engage in the business of operating a taxicab unless such taxicab is equipped with a taximeter which complies in every respect with the requirements hereinafter set out, is of a type approved by the Inspector and has been inspected and sealed by him pursuant to subsection (7).
- (5) All taximeters shall mechanically or electronically register the distance and corresponding rate or charge thereof while under hire, and shall be kept in a condition ensuring accuracy and continuous registration during hire, and shall be so installed as to be automatically operated when the taxicab is in motion as well as when such vehicle is standing under hire.
- (6) No person shall use or permit to be used in any taxicab a taximeter which shall register more than 2% (two percent) incorrectly.
- (7) At the request of the Inspector, and in any event once every 6 months, every taximeter shall be submitted to the Inspector who shall inspect and test the meter over a measured distance. The Inspector shall seal the meter, in such manner as he may deem advisable, if he is satisfied that it displays the correct tariff specified by this By-law, is accurate subject to subsection (6), and is otherwise in good working order.
- (8) The operator of a taxicab shall ensure that its taximeter is:

- (a) adequately illuminated at all times when in use between dusk and dawn;
- (b) installed and placed at the right side of the driver and in such position that the fare to be paid by the passenger may be easily read from the rear seat, and shall be so placed in the cab that the signal lever or the illuminated sign, indicating whether or not the meter is registering, shall be in plain view both from within and without the cab;
- (c) adjusted in accordance with the distance rates or fares herein before enumerated and specified in this By-law;
- (d) used only when the seal thereon is intact; and
- (e) kept in good working condition at all times, and not used when defective in any way.

(8) It shall be unlawful for any driver of a taxicab while carrying passengers or under engagement to display the signal lever or any sign at such position as to denote that such cab is not engaged; or to display the signal lever or any sign at such position as to denote that such cab is engaged, when such vehicle is not actually engaged.

(9) The driver of every taxicab shall place the signal lever or sign of the taximeter in the recording position immediately on the commencement of a trip with a passenger, and at the termination of such trip shall place the signal lever or sign in the non-recording position and shall call the attention of the passenger to the amount of the fare registered on the meter.

(10) Subsections (8) and (9) shall not be deemed to apply when a taxicab is being operated on a time or distance basis.

22. (1) Every person to whom a tow truck license has been granted shall keep an established place of business within the City and shall notify the Chief Constable and Inspector in writing of the address, or any change thereof, of the premises where such person keeps his books and records of the operation of his business.

(2) Every driver of a tow truck shall keep a daily record of all trips made by him, and such records shall contain the reason for the tow, the date, time, origin and destination of each towing contract, as well as the name and address of the owner of the vehicle being towed. Such records shall be kept by the owner of the tow truck for a period of 6 months and shall be produced for inspection at any reasonable time on demand by the Chief Constable or the Inspector.

(3) Every driver of a tow truck shall, before he tows any motor vehicle from the scene of an accident, supply to the owner or driver of the vehicle being towed a card which identifies the driver and the towing company by whom such driver is employed, except that where an owner or driver is injured or has been removed from the scene of an accident, such card shall be given to an attending police officer. The card shall be signed by the driver of the tow truck and shall state clearly the destination to which the motor vehicle will be towed.

(4) No driver of a tow truck shall deliver a vehicle to any destination other than the one stated on the card referred to in subsection (3) hereof.

(5) Every person who operates a tow truck and who impounds vehicles from private property shall provide staff for the purpose of releasing the vehicles to their owners on a 24 hour basis at the impound lot where such impounded vehicles are stored. Such impound lot shall be illuminated.

(6) No driver of any tow truck who has been requested to tow a vehicle from the scene of an accident shall solicit or suggest a specific destination for the motor vehicle being towed.

(7) No driver of a tow truck shall attend at the scene of a motor vehicle accident, whether by coincidence or otherwise, unless he has been requested to do so by the owner or driver of the motor vehicle involved in that accident or by an attending police officer.

(8) No driver of a tow truck shall remove any vehicle from any parking lot or vacant land under any agreement with the owner, occupier or operator thereof as the case may be, unless at the time such agreement was made there was, and at the time such vehicle is towed away there is, an approved towaway sign conspicuously displayed on the said parking lot or vacant land.

(9) The owner of any tow truck operating in the City shall cause the name of the company or firm carrying on the business to be painted on each door of each such vehicle in letters not less than 10 centimetres high.

(10) No driver of a tow truck shall remove any motor vehicle from a commercial parking lot unless upon the specific instruction of the owner of such vehicle or unless there is displayed on the vehicle a Tow-away Notice issued pursuant to the provisions of section 10 of the License By-law.

(11) Where a vehicle is removed by the driver of a tow truck pursuant to a Tow-away Notice he shall, at the time of removal, endorse such time on the original and duplicate Notice and initial the same. The duplicate shall be left on the vehicle in a conspicuous place. Every original Notice shall be retained for a period of thirty days and be subject to inspection upon demand by the Inspector.

(12) The maximum fee that may be charged for removal of a vehicle from a commercial parking lot pursuant to a Tow-away Notice shall be \$35.00.

(13) Where a tow truck has been requested to tow a vehicle pursuant to this section and the vehicle is claimed by the owner or driver before the vehicle has actually been towed away, the driver of the tow truck shall release the vehicle upon payment of a fee which shall not exceed \$17.50.

(14) Where a person to whom a tow truck license has been granted impounds a vehicle he shall:

- (a) within 24 hours of the vehicle's arrival at the place of storage, give written notification to the Chief of Police of the fact of impoundment, the vehicle's full description and its license and vehicle identification numbers;
- (b) if a vehicle remains unclaimed or uncollected for more than 1 (one) calendar day after impounding, send written notification to the registered owner thereof within the next 14 days if the vehicle is registered within British Columbia, or as expeditiously as possible if the vehicle is registered outside British Columbia;

- (c) maintain a record of all impounded vehicles which remain unclaimed or uncollected for more than 14 days after impounding, including a full description of the vehicle and its license and vehicle identification numbers; and
- (d) before the last day of every month, deliver a copy of the record referred to in Clause (c) to the Chief Constable.

(15) Where a person to whom a tow truck license has been granted impounds a vehicle he shall store it so that both its license number (plate) and vehicle identification number are accessible and can be readily identified.

23. (1) No person shall let for hire a u-drive to any other person, or allow any person to drive such vehicle, who is not in possession of a driver's license for the current year under the provisions of the Motor Vehicle Act.

(2) No owner shall knowingly let for hire a u-drive to any person apparently under the influence of liquor or drugs or who he has reason to suspect may use such vehicle for an unlawful purpose.

(3) No person shall use a u-drive for the transportation of property for hire or permit such vehicle to be used by any other person for such purpose.

(4) Every person who lets u-drives for hire shall keep a record book in which shall be recorded each hiring of such vehicle, and such record book shall be signed by every person hiring such vehicle, shall be open at all reasonable times to inspection by the Chief Constable or the Inspector and shall contain the following:

- (a) description of motor vehicle, including its make, license number, and serial number;
- (b) description of person renting motor vehicle, including his name, address, occupation, and driver's license number;
- (c) time of engagement:
 Out: [Date, hour (a.m. or p.m.)]
 In: [Date, hour (a.m. or p.m.)]

(5) No u-drive shall be let for hire until the person hiring the vehicle has produced a subsisting driver's license under the Motor Vehicle Act, and until the owner or other person in charge of the u-drive office has compared the signature on such license with the signature in the record and is satisfied that they were written by the same person.

(6) The regulations of this section 23 shall also apply, mutadis mutandis, to u-drive trucks, except that a person ordinarily engaged in the business of transporting property for hire may use a u-drive truck to transport such property for hire in his business.

24. (1) The interior and exterior of every vehicle for hire shall be kept clean and in good repair, and whenever the owner of any vehicle for hire receives notice, either given to him personally or to his driver, signed by the Inspector, that such vehicle for hire is not in a fit or proper condition for use, stating briefly the condition complained of, such owner shall forthwith cease to use such vehicle

or, within the time mentioned in such notice, shall remedy the condition complained of.

(2) No person shall carry in any vehicle for hire a greater number of passengers than the seating capacity for the vehicle or the number of passengers such vehicle is designed to seat, whichever is the lesser.

(3) No person owning or operating any vehicle for hire shall load, carry or transport any baggage on the outside of the vehicle, except in properly constructed racks for that purpose.

(4) The owner of any vehicle for hire in respect of which a license has been issued shall, when required, forthwith submit his vehicle for examination to the Inspector, and no owner or driver shall at any time prevent or hinder him from entering the owner's garage or other building for the purpose of inspecting such vehicle.

(5) Where any owner disposes of his vehicle for hire and acquires another vehicle for hire, he shall submit the latter vehicle to the Inspector for approval in conformity with the provisions of this By-law before using such vehicle for the purpose of his business.

(6) No owner of any vehicle for hire shall employ, engage or permit any person to operate his vehicle unless that person holds a subsisting taxi driver's license in the case of taxicabs, or in the case of any other vehicle for hire holds a subsisting driver's license of the type required by the Motor Vehicle Act or its regulations for the operation of that vehicle.

(7) Every owner granted a license to operate a vehicle for hire shall, on the engagement of any driver, ascertain the number and date of his driver's license, and forthwith report the same to the Chief Constable and shall, during the term of the driver's employment, keep a record of such license.

(8) Owners of vehicles for hire who employ both male and female drivers shall arrange suitable and separate washroom accommodation for each sex.

(9) Within 2 days of the engagement of a driver, every owner of a vehicle for hire shall notify the Chief Constable that he has employed such driver, and when such driver ceases to be so employed, the owner shall, within 2 days thereafter, notify the Chief Constable to such effect, giving the reasons for such cessation of employment.

(10) Every owner and driver of a vehicle for hire shall at all times obey the lawful orders and directions of the Chief Constable and the Inspector.

(11) No owner of a vehicle for hire who drives his own vehicle shall spend more hours in any one day in operating his vehicle than the maximum hours of work for an employee as set out in the Employment Standards Act of the Province of British Columbia. For the purpose of this subsection "day" means the period of time from midnight to the following midnight.

(12) Each owner referred to in subsection (11) of this section shall keep a true and correct record in ink or indelible pencil in the English language of the hours worked each day by himself in operating his own vehicle. Such records shall be produced for inspection of the Chief Constable at all reasonable times on demand of the Chief Constable.

(13) Every person to whom a license has been granted shall, at all reasonable times, permit the Chief Constable, Inspector, or any other police officer or official of the City to inspect any place, premises or thing in respect of which such license has been granted.

(14) Every person licensed under this By-law to operate a vehicle for hire shall upon changing his address or establishing additional premises, notify the Chief Constable and the Inspector thereof within 2 days, giving his new address and such other particulars as the Chief Constable and the Inspector may require. Every person holding a municipal permit issued by the Chief Constable shall, upon changing his home address, notify the Chief Constable thereof within 2 days, giving his new address and such other particulars as the Chief Constable may require.

(15) No person owning or operating a vehicle for hire shall employ or allow any runner or other person to assist or act in concert with him on any street in soliciting any person.

(16) No person shall assist or act in concert with the owner or operator of a vehicle for hire on any street in soliciting any person.

(17) Every owner and driver of any vehicle for hire shall take due care of all property delivered or entrusted to him for conveyance and immediately upon the termination of any hiring or engagement, shall carefully search his vehicle for any property lost or left therein; and all property and money left in his vehicle for hire shall be forthwith delivered over to the person owning the same or, if unclaimed or if the owner cannot at once be found, the same shall be delivered to the Chief Constable, with all information which might assist in establishing ownership of such property.

25. Non-compliance with any of the provisions of this or any other By-law applicable to a license or failure to maintain the standard of qualification for the issue of a license as herein provided shall be deemed to be an infraction of this By-law and shall render a license holder liable to the penalties hereby imposed, or to suspension or cancellation of the license.

26. Every person who makes any false statement in any application for a license under the provisions of this By-law shall be guilty of an offence against this By-law.

27. Every person who offends against any of the provisions of this By-law, or who suffers or permits any act or thing to be done in contravention or in violation of any of the provisions of this By-law, or who neglects to do, or refrains from doing anything required to be done by any of the provisions of this By-law, or who does any act or thing which violates any of the provisions of this By-law, shall be deemed to be guilty of an infraction of this By-law, and shall be liable to the penalties hereby imposed.

28. (1) Every person who commits an offence against this By-law is liable to a fine and penalty of not more than \$2,000.00 and not less than \$50.00 for each offence, and in default of payment thereof, or in the alternative, to imprisonment for any period not exceeding two months.

(2) Every person who commits an offence of a continuing nature is liable to a fine not exceeding \$50.00 for each day such offence is continued.

29. By-law No. 4299 is repealed.

30. This By-law comes into force and takes effect on the date
of its passing.

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DONE AND PASSED in open Council this 25th day of November,
1986.

M. Hancock
Mayor

R. Henry
City Clerk

A classification of carriers and respective license fees payable by such persons.

The following license fees are payable by every person owning or operating any of the following vehicles for hire in the City of Vancouver:

Airport Shuttle Bus, for each vehicle	\$ 35.00
Airport Transporter, for each vehicle	75.00
Antique Charter Limousine, for each vehicle	75.00
Charter Bus, for each vehicle	75.00
Charter Limousine, for each vehicle	75.00
Driver Instruction Vehicle, for each vehicle	75.00
Dual Taxicab, for each vehicle	150.00
Funeral Cab, for each vehicle	75.00
Handicapped Cab, for each vehicle	75.00
Horse-Drawn Carriage, for each vehicle	75.00
Luxury Limousine, for each vehicle	75.00
Motor Stage, for each vehicle	75.00
Pedicab, for each vehicle	75.00
for each person operating a leased vehicle on a daily fee basis	5.00
Rickshaw, for each vehicle	75.00
for each person operating a leased vehicle on a daily fee basis	5.00
School Cab, for each vehicle	75.00
Taxicab, for each vehicle	150.00
if used also for displaying advertising material, for each vehicle so used, additional fee	15.00
Tow Truck, for each vehicle	75.00
U-Drive, for each vehicle with 4 or more wheels	20.00
for each other vehicle	6.00

Unless otherwise provided herein, the license fee to operate a vehicle licensed for one purpose shall be \$35.00 for each additional purpose authorized by this By-law.

Notwithstanding anything contained herein, the provisions of the License By-law in respect of the time fixed for the payment of license fees and the penalties for late payment of fees shall apply, mutatis mutandis.